THE NATIONAL COMPANY LAW TRIBUNAL NEW DELHI
BENCH AT NEW DELHI
C.P. (CAA) 30/ND/2020

CA (CAA)NO.160 (ND) OF 2019.

(Under Section 230 & 232 of the Companies Act, 2013 read with other applicable provisions of the Companies Act, read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

CLEARVIEW HEALTHCARE PRIVATE LIMITED
F-14/22. MODEL TOWN-II,
NEW DELHI -110009. **.....Transferor Company/ Applicant No.1**

AND

CLEARMEDI HEALTHCARE PRIVATE LIMITED
F-14/22. MODEL TOWN-II,
NEW DELHI -110009. **.....Transferee Company/ Applicant No.2**

ORDER PRONOUNCED ON : 21/04/2022.

CORAM:

HON'BLE SHRI DHARMINDER SINGH, MEMBER, JUDICIAL
HON'BLE MS. SUMITA PURKAYASTHA, MEMBER, TECHNICAL

ORDER

PER- MS. SUMITA PURKAYASTHA, MEMBER (TECHNICAL)

1. This petition by way of Second motion has been filed on 29.01.2020 under the provisions of Sections 230-232 of the Companies Act, 2013 read with Rule 15(1) of the Companies (Compromise, Arrangements, Amalgamation) Rules, 2016 for the Scheme of Amalgamation (for brevity Scheme) is admitted and fixed for hearing and final disposal on 06.06.2022.

2. Learned counsel for the petitioner companies submits that in terms of the order dated 24.01.2020 passed by this Bench in CA (CAA) No.160/(ND)/2019, the holding of the meetings of all the equity shareholders, and creditors of the Transferor/ Petitioner Company and Transferee /Petitioner Company for the proposed scheme of Amalgamation between the transferor and the transferee company has been dispensed with in view of the there being 4 Secured creditors and 376 Un- secured creditors, the secured creditors have given their consent by way of affidavits and 68 unsecured creditors i.e. 90% in value, have also given their consent by way of affidavits.

3. Therefore, it is now directed that the notice of final hearing be fixed on 06.06.2022 and the same shall be advertised in the daily newspapers namely "Business Standard" in Hindi and "Business Standard" in English having circulation in district New Delhi, where the registered office of the applicant companies are situated.

4. In addition to the above public notice, the applicant companies shall individually serve notice of the petition on the following Authorities namely,(a) Central government through Regional Director, Northern Region (b) the Registrar of Companies, NCT of Delhi and Haryana; (c)the Official Liquidator, Delhi High Court; (d) the Income-Tax Authorities and other sectoral regulatory Authorities who may govern the working of the respective companies involved in the scheme, at least 10 days before the date fixed for hearing of the above petition.

5. Further, notices shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

6. All the applicant companies, shall at least 7 days before the date of hearing of the petition, file an affidavit of service in relation to the paper publication effected as well as the service of notices on the Authorities specified above including the Sectoral regulators.

7. Objections if any, to the Scheme contemplated by the authorities to whom notices have been given, may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and the relevant rules framed there under.

8. Each Applicant Company shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Act, 2013, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of statutory auditors of the applicant companies.

Let the copy of the order be served to the parties.

-Sd-

(SUMITA PURKAYASTHA)
MEMBER (T)

-Sd-

(DHARMINDER SINGH)
MEMBER (J)